

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WILLIAM D ROSS,

Petitioner

VS.

STEPHEN R CROW,

Respondent

) Case Number: FDI-20-794096

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PROPERTY CONTROL, AWARD OF REAL PROPERTY TO
PETITIONER, BUYOUT, STAY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner William D. Ross and Respondent Stephen R. Crow.
- 2) On 1/8/26, the Court issued an order regarding the property located at 779 Waller Street, San Francisco (Waller Street property). This order details the extensive rulings the Court made concerning this property dated back to a Statement of Decision filed 5/11/23, which orders the property be listed for sale by 7/15/23. Of note is this Court's appointment of an elisor to sign the listing agreement on behalf of Petitioner. See Findings and Order After Hearing (FOAH) filed 1/23/26.
- 3) On 3/6/26, Petitioner filed a Request for Order seeking the Court's permission to "pursue assumption of the existing mortgage loan" on the Waller Street property. Petitioner states, "Petitioner is seeking to assume the existing loan and buy out Respondent's interest in the property. Petitioner has communicated with the lender regarding this option and understands that the loan may be assumed subject to lender approval." Petitioner requests the Court permit

1 reasonable time for lender evaluation and completion of the assumption process before the forced
2 sale of the Waller Street property. The matter was set for hearing on 5/12/26.

- 3 4) On 3/10/26, Petitioner submitted an ex parte application seeking temporary emergency orders as
4 follows: (a) the status quo regarding the Waller Street property be maintained; (b) activation of
5 any listing, marketing, showing, or sale of the property temporarily stayed; (c) any requirement
6 that Petitioner vacate the property temporarily stayed; (d) these temporary orders remain in effect
7 until the 5/12/26 hearing (on Petitioner's Request for Order filed 3/6/26). On 3/10/26, the Court
8 denied Petitioner's request for temporary emergency orders pending hearing set for 4/14/26.
- 9 5) On 4/10/26, Respondent filed a Request for Order seeking: (a) exclusive use and possession of
10 the Waller Street property; (b) an order requiring Petitioner to pay all utility costs incurred from
11 June 2022 until the date Respondent takes possession of the property; (c) an order for Petitioner
12 to continue to pay the carrying costs on the property; and (d) authorization to open a blocked
13 account with Redwood Credit Union for the purpose of depositing the net proceeds from the sale
14 of the property into this account. Respondent asserts that Petitioner's occupancy of the Waller
15 Street property has interfered with the sale process ordered by the Court as he has prohibited the
16 real estate agent from entering. Respondent states he does not intend to reside in the property, but
17 rather seeks exclusive use, possession, and control to ensure the realtor, repair persons, and
18 potential buyers will be able to access the property without delay. The matter was set for hearing
19 on 6/4/26.
- 20 6) At the prior 4/14/26 hearing, the Court denied Petitioner's requests set forth in his 3/10/26 ex
21 parte application and reserved jurisdiction over Respondent's request for \$1,612 in Family Code
22 section 271 sanctions. See FOAH filed 5/1/26.
- 23 7) On 4/17/26, Respondent submitted an ex parte application seeking advancement of the 6/4/26
24 hearing to 5/12/26 based on judicial economy. Respondent simultaneously filed a Request to
25 Reschedule Hearing.
- 26 8) On 4/20/26, the Court issued an Order on Request to Reschedule advancing the 6/4/26 hearing to
27 5/12/26 against Petitioner's objection.
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1 9) On 4/21/26, Petitioner filed a Supplemental Declaration asserting that the Court needs to order a
2 complete financial accounting before it can proceed with enforcement of the orders forcing the
3 sale of the Waller Street property as reimbursements and offsets need to be determined.

4 10) On 4/30/26, Respondent filed a Responsive Declaration in opposition to Petitioner's request to
5 assume a loan to buyout Respondent's interest in the Waller Street property. Respondent asserts
6 that Petitioner's intention is only to delay the sale and reiterates his request for an order for
7 exclusive use, possession, and control of the property to effectuate the sale; Respondent states, "I
8 intend to seek sanctions against Petitioner in the amount well over \$80,000 for fees incurred due
9 to his failure to follow this Court's order which caused me to incur fees to file repeated motions
10 to enforce the terms of the August 4, 2024 Judgment and subsequent orders."

11 11) On 5/5/26, Petitioner filed a Responsive Declaration asserting that he does not consent to
12 vacating the Waller Street property and there is no practical reason requiring that he vacate the
13 property because he is cooperating with the sale process. Petitioner opposes any order requiring
14 him to pay utility or carrying costs on the property and requests that Respondent be ordered to
15 pay such costs. It is Petitioner's position that the property is not ready for immediate sale.

16 12) On 5/5/26, Petitioner filed a Supplemental Declaration reiterating his request regarding a
17 "proposed loan assumption and buyout alternative" for the Waller Street property.

18 13) At the prior 5/12/26 hearing, the Court issued the following orders:

19 a. Petitioner's request for an opportunity to pursue assumption of the existing mortgage loan
20 on the Waller Street property is DENIED. To date, Petitioner presented no documentary
21 evidence demonstrating his ability to assume the loan or buy out Respondent's interest in
22 the property. In the Court's view, it is clear that Petitioner intends to delay the sale of the
23 Waller Street property for as long as he possibly can.

24 b. Based on the foregoing, Respondent's request for exclusive use and possession of the
25 Waller Street property is GRANTED effective 6/12/26. The Court finds good cause to
26 grant such a request as Petitioner was previously ordered to vacate the residence and has
27 refused to comply with orders compelling the sale of the property since 2023. The Court
28 does not see a path in which Petitioner remains living in the Waller Street property and
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1 the sale of the property is completed. Respondent may submit an ex parte application for
2 a Writ of Execution to effectuate this order if necessary.

3 c. The Court reserves jurisdiction over Respondent's request for an order requiring
4 Petitioner to pay all utility costs incurred from June 2022 until the date Respondent takes
5 possession of the property.

6 d. Respondent's request that Petitioner be ordered to continue paying the carrying costs on
7 the property is DENIED.

8 e. Effective 6/12/26, Respondent shall be temporarily responsible for utility payments and
9 carrying costs associated with the property subject to reallocation.

10 f. Respondent's request for authorization to open a blocked account with Redwood Credit
11 Union for the purpose of depositing the net proceed from the sale of the Waller Street
12 property into this account is GRANTED. The proceeds from the sale of the property shall
13 remain blocked until further order of the Court (i.e., neither party is permitted to access
14 the funds unless and until a Court order otherwise).

15 14) On 5/12/26, Petitioner filed a Request for Order asking the Court to award him the Waller Street
16 property pending completion of the loan assumption and buyout process. Petitioner asks the Court
17 to stay any orders related to the transfer of possession of the Waller Street property to
18 Respondent. The matter was set for hearing on 6/30/26.

19 15) On 5/15/26, Petitioner filed a supplemental declaration wherein it appears he objects to the
20 Court's 5/12/26 orders and requests procedural clarification.

21 16) On 6/18/26, the Court granted Respondent's ex parte Request for Order seeking a Writ of
22 Possession of the Waller Street Property.

23 17) On 6/23/26, Petitioner filed "Emergency Request to Stay, Recall, or Modify Writ of Possession
24 Pending Meaningful Review and Order Directing Loan Assumption/ Buyout Process." Petitioner
25 requests the Court stay, recall, or modify the Writ of Possession and other orders related to
26 Petitioner remaining in the home pending a buyout of Respondent's interest. Petitioner also
27 requests the Court clarify which FOAH from the 5/12/26 hearing is the operative order.

28 18) On 6/23/26, Petitioner filed a Supplemental Declaration reiterating his objection to vacating the
29 Waller Street property. Petitioner requests "a meaningful opportunity to present lender

1 communications, financial information, documentation, and a practical plan for loan assumption
2 and buyout.”

3 19) On 6/23/26, Respondent filed “Respondent’s Objection to the Court’s Consideration of
4 Petitioner’s Request for Order Set for Hearing on June 30, 2026.” Respondent asserts Petitioner’s
5 Request for Order filed 5/12/26 was not properly served.

6 **B. Findings and Order**

7 1) The Court acknowledges that there are two FOAH from the 5/12/26 hearing in the Court’s file:
8 one filed dated 5/14/26, which counsel for Respondent prepared, and one file dated 6/3/26, which
9 the Court prepared. This is the Court’s mistake as counsel for Respondent was ordered to prepare
10 the FOAH. The Court will correct the file; accordingly, however, the Court’s order as set forth
11 above remains in full force and effect.

12 2) Petitioner’s Request for Order filed 5/12/26 is DENIED on both procedural and substantive
13 grounds.

14 3) Petitioner’s Request for Order is procedurally defective because it was not properly served on
15 Respondent. Respondent attached documentary evidence that Petitioner was noticed of defective
16 service by email on 6/1/26.

17 4) Further, Petitioner filed 3 additional supplemental declarations which contain new or different
18 requests and the rules do not provide for the filing of such pleadings.

19 5) Nevertheless, in proceeding to the merits of Petitioner’s Request for Order filed 5/12/26, the
20 Court finds Petitioner’s requests are MOOT given that the Court denied Petitioner’s request for
21 an opportunity to pursue assumption of the existing mortgage loan on the Waller Street property
22 at the prior 5/12/26 hearing.

23 6) The Court stated, in pertinent part: “Petitioner’s request for an opportunity to pursue assumption
24 of the existing mortgage loan on the Waller Street property is DENIED. To date, Petitioner
25 presented no documentary evidence demonstrating his ability to assume the loan or buy out
26 Respondent’s interest in the property. In the Court’s view, it is clear that Petitioner intends to
27 delay the sale of the Waller Street property for as long as he possibly can. Based on the foregoing,
28 Respondent’s request for exclusive use and possession of the Waller Street property is
29 GRANTED effective 6/12/26. The Court finds good cause to grant such a request as Petitioner

1 was previously ordered to vacate the residence and has refused to comply with orders compelling
2 the sale of the property since 2023. The Court does not see a path in which Petitioner remains
3 living in the Waller Street property and the sale of the property is completed. Respondent may
4 submit an ex parte application for a Writ of Execution to effectuate this order if necessary.”

5 7) Thereafter, the Court granted Respondent’s request for a Writ of Possession of the Waller Street
6 Property on 6/18/26.

7 8) The Court will prepare the Findings and Order After Hearing.
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